# HIGH COURT OF DELHI

JUDICIAL APPELLATE JURISDICTION

**CASE NO: Civil Appeal No. 3490 of 2020 (YEAR: 2020)**

***CORAM: PRATHIBA M. SINGH***

**Halliburton Offshore Services Inc.**
**... Appellant(s) / Petitioner(s)**
***Versus***
**Vedanta Limited**
**... Respondent(s)**

| | |
|---|---|
| **Acts Referred:** | Indian Contract Act, 1872 |
| **Sections:** | Section 56 Contract Act |

## JUDICIAL HEADNOTE & SUMMARY

Held that Covid-19 pandemic cannot be used as an automatic excuse to escape contractual performance or restrain invocation of unconditional bank guarantees.

## RATIO DECIDENDI

The Court held that: Held that Covid-19 pandemic cannot be used as an automatic excuse to escape contractual performance or restrain invocation of unconditional bank guarantees. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

## JUDGMENT & REASONING

The legal proceedings in Halliburton Offshore Services Inc. v. Vedanta Limited (Civil Appeal No. 3490 of 2020) were adjudicated before the High Court of Delhi. The matter arose out of claims and contentions concerning Indian Contract Act, 1872, particularly Section 56 Contract Act. Held that Covid-19 pandemic cannot be used as an automatic excuse to escape contractual performance or restrain invocation of unconditional bank guarantees.

## OPERATIVE ORDER

**ORDER:** Decided